

FLEZEN TERMS OF SERVICE

Last Updated: February 16, 2026

Effective Date: February 20, 2026

Thank you for using Flezen. These Terms of Service (these "Terms") govern your use of and access to our services, client software, and websites (collectively, the "Services"). Your agreement is with Flezen (the "Company," "we," "us," or "our"). Our Privacy Policy explains how we collect and use your information. By using the Services, you agree to be bound by these Terms and our Privacy Policy.

1. AGE REQUIREMENTS AND PARENTAL CONSENT

1.1 Minimum Age Requirement

You must be at least 16 years of age to use the Services. If you are under 18 years of age or are otherwise defined as a minor according to the laws of your jurisdiction, you must obtain consent from your parent or legal guardian before using the Services.

1.2 Responsibility for Minors

If you are a minor (under 18 years of age), you must:

- Read these Terms under the supervision and guidance of your parent or legal guardian;
- Obtain your parent's or legal guardian's consent before providing any personal information; and
- Only use the Services with ongoing parental supervision.

Due to the nature of the Internet and user anonymity, it is difficult for us to verify parental consent individually. Therefore, minors are responsible for ensuring they have obtained proper consent before using the Services.

1.3 Children Under 13

We do not knowingly collect or solicit personal information from children under the age of 13, nor do we knowingly allow such children to use our Services. If you are under the age of 13, **do not use the Services** and do not send us any information about yourself, including your name, address, telephone number, or email address.

If you believe that your child under 13 has provided information through our Services, please contact us immediately at support@flezen.com, and we will make reasonable efforts to promptly delete such information from our records.

2. YOUR DATA AND PERMISSIONS

2.1 User Data

When you use the Services, you may provide us with materials such as files, content, messages, and contacts (collectively, "User Data"). See our Privacy Policy for additional details. These Terms do not grant the Company any ownership rights to User Data, except for the limited rights necessary to provide the Services.

2.2 Permissions You Grant Us

To provide the Services, the Company requires your permission to host, store, back up, access, scan, and process User Data. You hereby grant us this permission, which extends to the Company's affiliates and trusted third-party service providers with whom the Company works to deliver the Services.

2.3 Data Storage

User Data is stored on servers located in India and may be processed in other jurisdictions as necessary to provide the Services. By using the Services, you consent to this storage and processing.

3. ACCEPTABLE USE POLICY

You agree not to misuse the Services or assist anyone else in doing so. Without limitation, you must not do, or attempt to do, any of the following in connection with the Services:

- Probe, scan, or test the vulnerability of any system or network;
- Breach or otherwise circumvent any security or authentication measures;
- Access, tamper with, or use non-public areas or parts of the Services, or shared areas of the Services to which you have not been invited;
- Interfere with or disrupt any user, host, or network, including by sending viruses, overloading, flooding, spamming, or mail-bombing any part of the Services;
- Send altered, deceptive, or false source-identifying information, including "spoofing" or "phishing";
- Abuse referrals or promotions to obtain more storage space than legitimately earned, or sell storage space received from referrals or promotions;
- Circumvent storage space limits through unauthorized means;
- Publish or share materials that are unlawfully pornographic, indecent, or that contain extreme acts of violence or terrorist activity, including terror propaganda;
- Advocate bigotry or hatred against any person or group of people based on their race, religion, ethnicity, sex, gender identity, sexual orientation, disability, or impairment;
- Violate any applicable law, including storing, publishing, or sharing material that is fraudulent, defamatory, or misleading; or
- Violate the privacy or infringe the rights of others.

4. YOUR RESPONSIBILITIES

4.1 General Responsibilities

You acknowledge and agree that you use the Services at your own risk and are responsible for all actions and outcomes resulting from your use of the Services, including interactions with other users. Your use of the Services must comply with our Acceptable Use Policy set forth in Section 3.

4.2 Intellectual Property Compliance

Content available through the Services may be protected by third-party intellectual property rights. You may not copy, upload, download, or share content unless you have the legal right to do so. You are solely responsible for ensuring you have all necessary rights to any content you upload to the Services.

4.3 Content Review

You agree that the Company may review your conduct and content for compliance with these Terms and our Acceptable Use Policy. The Company may remove or refuse to display content that we reasonably believe violates our policies or applicable law. However, the Company does not actively monitor all content and is under no obligation to do so. You should not assume that all content has been reviewed.

4.4 Account Security

To protect your User Data, you must:

- Safeguard your password and account credentials;
- Keep your account information current and accurate;
- Not share your account credentials with others; and
- Not provide others with access to your account.

You are responsible for all activities that occur under your account.

4.5 Legal Compliance and Age Confirmation

You may use the Services only as permitted by applicable law, including export control laws and regulations. By using the Services, you confirm that:

- You are at least 16 years of age;
- If you are under 18 years of age, you have obtained parental or guardian consent to use the Services; and
- You will comply with all applicable laws in your jurisdiction.

5. STORAGE LIMITS AND FEATURES

5.1 Free Storage

New accounts receive unlimited free storage space. The Company reserves the right to modify the amount of free storage for new accounts with 30 days' notice.

5.2 Inactive Accounts

If your account remains inactive (no login activity) for 180 consecutive days, the Company may reduce your free storage capacity upto 5GB. You will receive email notifications of inactivity before any reduction occurs.

6. SOFTWARE

The Services may allow you to download client software ("Software"). The Software may update automatically. Subject to your compliance with these Terms, the Company grants you a limited, non-exclusive, non-transferable, revocable license to use the Software solely for the purpose of accessing the Services.

To the extent any component of the Software is offered under an open-source license, the Company will make that license available to you, and the provisions of that license may expressly override some of these Terms. Unless prohibited by law, you agree not to reverse engineer or decompile the Services, attempt to do so, or assist anyone in doing so.

7. ADVERTISEMENTS AND REVENUE SHARING

7.1 Third-Party Advertisements

The Services, including desktop and mobile applications, may display third-party advertisements. You understand and agree that Flezen is not responsible for the content, accuracy, or claims made in these advertisements.

7.2 Third-Party Products and Services

Flezen may display advertisements and promotions from third parties via the Services or provide information about or links to third-party products or services.

7.3 Your Dealings with Third Parties

Your business dealings, correspondence with, or participation in promotions of third parties, and any terms, conditions, warranties, or representations associated with such dealings or promotions, are solely between you and such third parties. Flezen is not responsible or liable for any loss or damage of any sort incurred as a result of such dealings, promotions, or the presence of third-party advertisements or information accessible via the Services.

7.4 Content Creator Revenue Program

7.4.1 Eligibility

Users who meet the following criteria may be eligible to earn revenue by displaying advertisements on their content ("Content Creators"):

- Account in good standing;
- Minimum of 1,000 total file views;
- Compliance with all Terms and Acceptable Use Policy; and
- Valid payment information on file.

Documentation Requirements: Flezen does not collect, require, or request any legal documentation, tax forms, identity documents, or verification documents from Content Creators. Only payment details (such as UPI ID, PayPal email, or cryptocurrency wallet address) are required to participate in the revenue program.

User Tax Responsibility: By participating in the revenue program, you acknowledge that you are solely responsible for reporting and paying any applicable taxes on your earnings in your jurisdiction. Flezen does not withhold taxes, provide tax advice, or submit tax reports on your behalf. You should consult with a tax professional regarding your tax obligations.

7.4.2 Revenue Model - CPM Basis

Revenue is calculated on a Cost Per Mille (CPM) basis, meaning you earn revenue for every 1,000 advertisement views on your content.

Important Terms:

- **CPM Rates:** CPM rates are variable and determined by Flezen based on multiple factors including but not limited to advertiser demand, viewer geographic location, content category, seasonal trends, and market conditions.
- **Rate Changes:** CPM rates may change at any time without prior notice. Flezen is not obligated to provide advance notification of rate adjustments.
- **Rate Disclosure:** CPM rates may or may not be disclosed to users. Due to the volatile nature of advertising markets and regional variations, Flezen reserves the right to keep specific CPM rates confidential.
- **Regional Variations:** CPM rates vary significantly based on the geographic location of viewers. Content viewed in certain regions may generate higher or lower CPM rates than others.
- **No Guaranteed Rates:** Flezen makes no guarantee or commitment regarding specific CPM rates, minimum earnings, or rate stability.

7.4.3 Revenue Calculation

Your earnings are calculated as follows:

- $\text{Revenue} = (\text{Total Advertisement Views} \div 1,000) \times \text{Applicable CPM Rate}$
- Advertisement views are counted only when ads are successfully loaded and displayed to viewers
- Invalid traffic, bot views, fraudulent clicks, or artificially generated views are excluded from revenue calculations
- Flezen uses industry-standard fraud detection and may adjust earnings if invalid traffic is detected

7.4.4 Payment Terms

Minimum Payout Threshold:

- \$10 USD equivalent
- Earnings below this threshold will accumulate until the minimum is reached

Payment Methods: Users may choose from the following payment methods (subject to availability):

- **UPI (Unified Payments Interface):** Available for users in India

- **PayPal:** Available in supported countries
- **Cryptocurrency:** If and when made available by Flezen

Payment Method Terms:

- You must comply with all terms and conditions of your chosen payment service provider (UPI, PayPal, cryptocurrency platform, etc.)
- You are responsible for maintaining valid and accurate payment information
- Flezen is not responsible for issues arising from payment service provider policies, limitations, or failures
- Payment methods may be added or removed at Flezen's discretion

Payment Processing Fees:

- If any fees are charged by payment processors, banks, or cryptocurrency networks for transferring your revenue, such fees will be deducted from your payment amount
- These fees may include but are not limited to: transaction fees, currency conversion fees, wire transfer fees, network fees (for cryptocurrency), and intermediary bank charges
- The net amount you receive will be your earned revenue minus all applicable transaction fees
- Fee amounts vary by payment method and are determined by third-party service providers

Payment Schedule and Processing:

- Payments are **NOT processed automatically**. You must manually initiate a withdrawal request through your account dashboard
- You may request a withdrawal at any time once your earnings meet or exceed the minimum payout threshold of ₹100 or \$2 USD
- There is no fixed payment schedule or monthly automatic processing
- Once you initiate a withdrawal request, Flezen will process the payment within 24 hours, subject to verification and fraud checks
- After Flezen processes your payment, it may take up to 72 hours (3 business days) to be credited to your account, depending on your chosen payment method and the policies of payment service providers
- Total time from withdrawal request to receipt: up to 4 business days (1 day's processing + 3 days transfer)
- Delays beyond this timeframe caused by payment service providers, banks, or external factors are not the responsibility of Flezen

- You will receive email notification when your withdrawal request has been received and when the payment has been processed
- **Flezen reserves the right to hold, delay, or deny any withdrawal request if suspicious activity is detected or for any reason deemed necessary to protect the integrity of the revenue program** (see Section 7.4.7 for details)

Currency:

- Payments are made in the currency supported by your chosen payment method
- For UPI: Indian Rupees (INR)
- For PayPal: USD, EUR, INR, or other currencies as supported by PayPal
- For Cryptocurrency: The applicable cryptocurrency (e.g., USDT, BTC, ETH)
- Currency conversion rates (if applicable) are determined at the time of payment processing

7.4.5 Prohibited Content for Monetization

Content is not eligible for revenue sharing if it:

- Violates the Acceptable Use Policy set forth in Section 3;
- Contains copyrighted material for which you do not have rights to monetize;
- Is primarily advertising, promotional material, or spam;
- Contains misleading, deceptive, or false information;
- Violates third-party intellectual property or other rights;
- Contains content that violates applicable laws or regulations;
- Is deemed by Flezen, in its sole discretion, to be inappropriate for monetization, including content that may harm advertiser relationships or brand reputation; or
- Generates traffic primarily through artificial means, bots, or incentivized views.

7.4.6 Fraudulent Activity and Enforcement

Flezen employs sophisticated fraud detection systems to protect the integrity of the revenue program. The following activities are strictly prohibited:

Prohibited Activities:

- Using bots, scripts, or automated tools to generate artificial views
- Engaging in click fraud or impression fraud

- Encouraging or incentivizing others to repeatedly view content for the purpose of generating revenue
- Using VPNs, proxies, or other tools to manipulate geographic data
- Creating multiple accounts to circumvent program limitations
- Engaging in any form of traffic manipulation or invalid activity

Consequences: If Flezen detects or suspects fraudulent activity:

- Earnings generated from fraudulent activity will be forfeited
- Your account may be immediately suspended or terminated without prior notice
- Pending payments may be withheld pending investigation
- You may be permanently banned from the revenue program
- Flezen reserves the right to take legal action for fraudulent activity

7.4.7 Suspension or Termination of Revenue Program Participation

Flezen may suspend or terminate your participation in the revenue program at any time if:

- You violate these Terms or the Acceptable Use Policy;
- Your content becomes ineligible under Section 7.4.5;
- We detect fraudulent activity as described in Section 7.4.6;
- You fail to maintain minimum eligibility requirements;
- Your account is terminated or suspended for any reason;
- Your payment information is invalid or payments repeatedly fail;
- As required by law, legal process, or our advertising partners; or
- At Flezen's sole discretion for protecting the integrity of the revenue program.

Payment Holds and Withholding: Flezen reserves the right to hold, delay, or withhold any payment or revenue for any of the following reasons:

- Suspicious activity detected on your account;
- Unusual withdrawal patterns or behavior;
- Suspected fraud, click fraud, or traffic manipulation;
- Investigation of potential Terms violations;
- Reports or complaints about your content;
- Payment verification requirements;
- Legal investigations or requests from authorities;
- Risk of chargebacks or payment reversals;

- Incomplete or invalid payment information; or
- Any reason Flezen deems necessary to protect the integrity of the revenue program or investigate potential violations.

Payment holds may remain in effect indefinitely during investigations. Flezen is under no obligation to release held payments if violations are confirmed or if the investigation cannot be conclusively resolved. You will be notified if payments are held, but Flezen is not required to disclose specific reasons or evidence during active investigations.

Effect of Suspension or Termination:

- Upon suspension or termination from the revenue program, you will forfeit the right to earn future revenue
- **Forfeiture of Unpaid Revenue:** If your account is terminated for any reason, Flezen is not obligated to pay any remaining revenue balance that has not been withdrawn, regardless of the amount. All unpaid earnings will be forfeited upon account termination.
- This forfeiture applies to terminations resulting from: violations of these Terms, fraudulent activity, suspicious behavior, policy violations, account closure at Flezen's discretion, or user-initiated account deletion.
- Amounts may be withheld indefinitely for investigation of potential fraud or policy violations

7.4.8 No Guarantee of Revenue or Program Availability

You acknowledge and agree that:

- Flezen makes no guarantee, representation, or warranty regarding the amount of revenue you will earn
- Revenue depends on numerous factors outside of Flezen's control, including viewer behavior, advertiser demand, and market conditions
- The availability of advertisements for your content is not guaranteed
- CPM rates fluctuate and may increase or decrease at any time
- The revenue program may be modified, suspended, or discontinued at any time
- Traffic or views to your content are not guaranteed
- Earnings may vary significantly from month to month or may be zero in some periods

7.4.9 Changes to Revenue Program Terms

Flezen reserves the right to modify any aspect of the revenue program at any time, including but not limited to:

- CPM rates and calculation methods
- Eligibility criteria
- Minimum payout thresholds
- Payment methods and processing times
- Revenue share percentages or models
- Program rules and policies
- Available features and functionality

Notice of Changes:

- Changes to CPM rates may be made without notice as specified in Section 7.4.2
- For other material changes affecting payment terms or eligibility, Flezen will provide at least 15 days' notice via email to active Content Creators
- Continued participation in the revenue program after changes take effect constitutes acceptance of the modified terms
- If you do not agree to modified terms, you must cease participation in the revenue program before changes become effective

7.4.10 Revenue Reporting and Transparency

- Flezen will provide access to a dashboard or reporting interface where you can view estimated earnings, views, and payment history
- Reports are provided for informational purposes and may be subject to adjustment
- Flezen reserves the right to adjust reported earnings if errors, invalid traffic, or fraudulent activity is detected
- Final payment amounts may differ from dashboard estimates due to fraud detection, fee deductions, or other adjustments
- Historical data may be retained for a limited period and is not guaranteed to be permanently accessible

8. CONTENT DELETION

8.1 Deletion by Company

Flezen reserves the right to delete uploaded content at any time based on:

- Requests from governmental authorities or law enforcement;
- Legal obligations or court orders;
- Violations of these Terms or the Acceptable Use Policy;
- Copyright infringement claims; or
- Other lawful reasons.

Flezen will make reasonable efforts to notify users if their content is deleted due to such requests, except where legally prohibited, impractical, or where immediate deletion is necessary to prevent harm.

8.2 Automatic Deletion for Inactivity

If a file has received zero views for 90 consecutive days, it may be automatically deleted. The Company will send email notifications to the account holder in prior before deletion occurs.

8.3 User-Initiated Deletion

You may delete your own content at any time. Once the file is deleted, it gets permanently deleted from the servers.

9. COMPANY PROPERTY

The Services are protected by copyright, trademark, and other laws of India and foreign jurisdictions. These Terms do not grant you any right, title, or interest in the Services, third-party content within the Services, or the Company's trademarks, logos, or other brand features. All rights not expressly granted to you are reserved by Flezen.

10. COPYRIGHT INFRINGEMENT

10.1 Company Policy

The Company respects the intellectual property rights of others and requires our users to do the same. We respond to notices of alleged copyright infringement that comply with applicable law. We reserve the right to delete or disable content alleged to be infringed and to terminate the accounts of repeat infringers.

10.2 Filing a Copyright Complaint

If you are a copyright owner, authorized to act on behalf of a copyright owner, or authorized to act under any exclusive right under copyright, please report alleged copyright infringements occurring on or through the Services by submitting a Notice of Alleged Infringement ("Notice") to the Company.

Your Notice must include:

- (a) Identification of the copyrighted work that you claim has been infringed or, if multiple copyrighted works are covered by this Notice, a representative list of such works;
- (b) Identification of the material or link you claim is infringing (or the subject of infringing activity) and sufficient information to locate such material, including the specific URL;
- (c) Your contact information, including your full name, company affiliation (if applicable), mailing address, telephone number, and email address;
- (d) A statement that you have a good faith belief that use of the material in the manner complained of is not authorized by the copyright owner, its agent, or the law;
- (e) A statement that the information in the Notice is accurate, and under penalty of perjury, that you are authorized to act on behalf of the copyright owner; and
- (f) Your electronic or physical signature.

Please deliver the Notice to: copyright@flezen.com

10.3 Counter-Notice Procedure

If you believe that content you posted was removed in error or misidentification, you may submit a counter-notice to copyright@flezen.com containing:

- (a) Your contact information (name, address, phone number, and email);
- (b) Identification of the content that was removed and its location before removal;
- (c) A statement under penalty of perjury that you have a good faith belief that the content was removed as a result of mistake or misidentification;
- (d) Your consent to jurisdiction of Indian courts and acceptance of service of process from the original complainant; and
- (e) Your electronic or physical signature.

Upon receipt of a valid counter-notice, we will forward it to the original complainant and may restore the content within 10-14 business days unless the complainant notifies us of legal action.

11. TERMINATION

11.1 Your Right to Terminate

You may cease using the Services at any time. If you wish to delete your account, you may do so through account settings or by contacting support@flezen.com.

11.2 Company's Right to Terminate

The Company reserves the right to suspend or terminate your access to the Services with notice to you if:

- (a) You are in breach of these Terms;
- (b) Your use of the Services would cause a real risk of harm or loss to us or other users;
- (c) Your account has been inactive for more than 365 consecutive days (for free accounts); or
- (d) As required by law or legal process.

The Company will provide you with at least 7 days' advance notice via the email address associated with your account to remedy the activity that prompted us to contact you and give you the opportunity to export User Data from the Services. If, after such notice, you fail to take the requested steps, the Company will terminate or suspend your access to the Services.

11.3 Immediate Termination Without Notice

No advance notice of termination will be provided where:

- (a) You are in material breach of these Terms, including but not limited to violations of the Acceptable Use Policy;
- (b) Doing so would expose the Company to legal liability or compromise our ability to provide the Services to other users;
- (c) We detect fraudulent activity or security threats;
- (d) The Company is prohibited from providing notice by law or court order; or
- (e) Your account is being used for illegal activities.

11.4 Effect of Termination

Upon termination:

- Your right to access and use the Services will immediately cease;
- You will have 30 days to export your User Data before it is permanently deleted;
- Amounts owed to the Company become immediately due and payable; and
- Sections 9, 12, 13, 14, 15, and 16 of these Terms will survive termination.

12. CHANGES OR DISCONTINUATION OF SERVICES

The Company may, in its discretion and when deemed necessary, with or without notice, change all or part of the Services, discontinue providing all or part of the Services or features, or create usage limits for the Services.

Such changes may include, without limitation:

- Introduction of new features or removal of existing features;

- Modification of storage limits for free or paid accounts;
- Changes to pricing for paid plans (if available);
- Implementation of new usage restrictions; or
- Discontinuation of the Services entirely.

12.1 Notice for Material Changes

For changes that materially reduce functionality or storage capacity you have already received, the Company will provide at least 30 days' advance notice via email so that you can export User Data from the Services.

13. DISCLAIMER OF WARRANTIES

THE SERVICES ARE PROVIDED "AS IS" AND "AS AVAILABLE," AND TO THE FULLEST EXTENT PERMITTED BY LAW, THE COMPANY AND ITS AFFILIATES, SUPPLIERS, AND DISTRIBUTORS MAKE NO WARRANTIES, EITHER EXPRESS OR IMPLIED, INCLUDING WITHOUT LIMITATION:

- ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT;
- THAT THE SERVICES WILL BE UNINTERRUPTED, ERROR-FREE, OR SECURE;
- THAT DEFECTS WILL BE CORRECTED;
- THAT THE SERVICES OR SERVERS ARE FREE OF VIRUSES OR HARMFUL COMPONENTS; OR
- THAT USER DATA WILL NOT BE LOST OR CORRUPTED.

YOU USE THE SERVICES AT YOUR OWN RISK. THE COMPANY RECOMMENDS THAT YOU MAINTAIN YOUR OWN BACKUPS OF IMPORTANT DATA.

14. LIMITATION OF LIABILITY

TO THE FULLEST EXTENT PERMITTED BY LAW:

14.1 General Limitation

EXCEPT WHERE YOUR LOSSES AND DAMAGES ARE ATTRIBUTED TO THE COMPANY'S WILLFUL INTENT OR GROSS NEGLIGENCE, THE COMPANY SHALL NOT BE RESPONSIBLE FOR ANY LOSSES OR DAMAGES DERIVED FROM YOUR USE OF THE SERVICES.

14.2 Consumer Contract Protection

IF OUR CONTRACT WITH YOU IN CONNECTION WITH YOUR USE OF THE SERVICES IS CONSIDERED A "CONSUMER CONTRACT" UNDER THE CONSUMER PROTECTION ACT, 2019 OR SIMILAR CONSUMER PROTECTION LAWS, THEN EXCEPT WHERE YOUR LOSSES AND DAMAGES ARE ATTRIBUTED TO THE COMPANY'S WILLFUL INTENT OR GROSS NEGLIGENCE, THE COMPANY SHALL BE RESPONSIBLE TO YOU ONLY FOR DIRECT FORESEEABLE LOSSES AND DAMAGES IN NORMAL CIRCUMSTANCES, CAPPED AT THE LESSER OF:

- THE FEES THE COMPANY RECEIVED FROM YOU IN THE 12 MONTHS PRECEDING THE EVENT GIVING RISE TO LIABILITY; OR
- ₹10,000 (TEN THOUSAND INDIAN RUPEES).

14.3 Excluded Damages

NEITHER THE COMPANY NOR ITS AFFILIATES, SUPPLIERS, OR DISTRIBUTORS SHALL BE LIABLE FOR:

(a) ANY INDIRECT, SPECIAL, INCIDENTAL, PUNITIVE, EXEMPLARY, OR CONSEQUENTIAL DAMAGES;

(b) ANY LOSS OF USE, DATA, BUSINESS, REVENUE, OR PROFITS, REGARDLESS OF LEGAL THEORY;

(c) ANY DAMAGES RESULTING FROM UNAUTHORIZED ACCESS TO OR ALTERATION OF YOUR TRANSMISSIONS OR DATA;

(d) ANY DAMAGES RESULTING FROM THIRD-PARTY CONDUCT OR CONTENT ON THE SERVICES; OR

(e) ANY DAMAGES RESULTING FROM DELETION OF, CORRUPTION OF, OR FAILURE TO STORE USER DATA.

14.4 Basis of the Bargain

THE LIMITATIONS IN THIS SECTION APPLY EVEN IF THE COMPANY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES AND REFLECT A REASONABLE ALLOCATION OF RISK BETWEEN THE PARTIES. THESE LIMITATIONS WILL APPLY TO THE FULLEST EXTENT PERMITTED BY LAW AND WILL SURVIVE ANY TERMINATION OR EXPIRATION OF THESE TERMS.

15. INDEMNIFICATION

You agree to indemnify, defend, and hold harmless Flezen, its affiliates, officers, directors, employees, agents, and licensors from and against any and all claims, liabilities, damages, losses, costs, expenses, or fees (including reasonable attorneys' fees) arising from:

- (a) Your use or misuse of the Services;
- (b) Your violation of these Terms;
- (c) Your violation of any rights of another party, including any users;
- (d) Your User Data or any content you upload or share through the Services;
- (e) Your violation of any applicable laws or regulations; or
- (f) Any fraudulent or illegal activity.

This indemnification obligation will survive the termination of these Terms and your use of the Services.

16. DISPUTE RESOLUTION

16.1 Informal Resolution

Before filing a claim against the Company, you agree to attempt to resolve the dispute informally by contacting support@flezen.com with a detailed description of the dispute. The Company will endeavor to resolve the dispute informally by contacting you via email within 5 business days. If a

dispute is not resolved within 30 days of your initial contact, you or the Company may initiate formal proceedings.

16.2 Jurisdiction and Venue

You and the Company agree that any judicial proceeding to resolve claims relating to these Terms or the Services will be brought exclusively in the courts located in India. Both you and the Company consent to exclusive venue and personal jurisdiction in such courts.

If you reside in a jurisdiction with laws that give consumers the right to bring disputes in their local courts, this paragraph shall not affect those mandatory consumer rights.

16.3 Time Limitation

You agree that regardless of any statute or law to the contrary, any claim or cause of action arising out of or related to use of the Services, or these Terms must be filed within one (1) year after such claim or cause of action arose or be forever barred.

17. GOVERNING LAW

These Terms will be governed by and construed in accordance with the laws of India, without regard to its conflicts of law principles. The United Nations Convention on Contracts for the International Sale of Goods shall not apply.

18. ENTIRE AGREEMENT

These Terms, together with our Privacy Policy and any other policies listed, constitute the entire agreement between you and the Company with respect to the subject matter herein and supersede all prior or contemporaneous agreements, terms, and conditions applicable to the subject matter.

Except as expressly set forth herein, these Terms create no third-party beneficiary rights.

19. WAIVER, SEVERABILITY, AND ASSIGNMENT

19.1 Waiver

The Company's failure to enforce any provision of these Terms shall not constitute a waiver of its right to do so in the future. No waiver of any term of these Terms shall be deemed a further or continuing waiver of such term or any other term.

19.2 Severability

If any provision of these Terms is found to be unenforceable or invalid by a court of competent jurisdiction, the remaining provisions will remain in full effect, and an enforceable term will be substituted that reflects our intent as closely as possible.

19.3 Assignment

You may not assign, transfer, or delegate any of your rights or obligations under these Terms without the Company's prior written consent, and any such attempt will be void. The Company may assign its rights and obligations under these Terms to any of its affiliates or subsidiaries, or to any successor in interest of any business associated with the Services, without your consent.

20. MODIFICATIONS TO THESE TERMS

The Company may revise these Terms from time to time to:

- (a) Reflect changes to applicable law or regulatory requirements;
- (b) Reflect new regulatory requirements or legal obligations;
- (c) Reflect improvements, enhancements, or changes made to the Services;
- (d) Address security, fraud, or technical issues;
- (e) Conform to the general interest of users; or
- (f) Make amendments that do not contradict the purpose of these Terms and are reasonable considering the circumstances, necessity, and appropriateness of the amendment.

20.1 Notice of Changes

The Company will notify you at least 30 days in advance of any update that materially affects your use of the Services or your legal rights as a user. Notice can be provided via:

- Email to the address associated with your account;
- Prominent notice on the Flezen website or application; or
- In-app notification upon your next login.

20.2 Effective Date of Changes

Updated Terms shall become effective no less than 30 days from the date of notification for material changes, and immediately for non-material changes such as clarifications or corrections.

20.3 Acceptance of Changes

If you do not agree to the updated Terms, you must cease using the Services before the updates become effective. By continuing to use or access the Services after the updates come into effect, you agree to be bound by the revised Terms.

21. FORCE MAJEURE

The Company shall not be liable for any failure or delay in performing its obligations under these Terms due to events beyond its reasonable control, including but not limited to:

- Acts of God (earthquakes, floods, fires, storms, etc.);
- War, terrorism, riots, or civil unrest;
- Pandemics or epidemics;
- Government actions, laws, or regulations;
- Labor disputes or strikes;
- Internet or telecommunications failures not caused by the Company;
- Hacking, cyber-attacks, or denial of service attacks; or
- Failures of third-party services or suppliers.

During any such event, the Company's obligations will be suspended for the duration of the force majeure event. The Company will make reasonable efforts to mitigate the effects and resume normal operations as soon as practicable.

22. CONTACT INFORMATION

If you have any questions, concerns, or complaints about these Terms or the Services, please contact us at:

General Inquiries:

Email: support@flezen.com

Copyright Issues:

Email: copyright@flezen.com

Revenue Program Questions:

Email: support@flezen.com (Subject: Revenue Program)

23. ACKNOWLEDGMENT AND ACCEPTANCE

By creating an account, accessing, or using the Flezen website, mobile application, or any of our Services, you acknowledge that:

- You have read and understood these Terms of Service in their entirety;
- You agree to be bound by these Terms and our Privacy Policy;
- You meet the age requirements set forth in Section 1;
- If you are a minor, you have obtained parental or guardian consent;
- You will comply with all applicable laws and regulations; and
- You understand that violation of these Terms may result in termination of your account and loss of access to the Services.

If you do not agree with these Terms, you must not use the Services.

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